

21STCV26403 21STCV26403

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-17

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Plaintiff alleges that he was

terminated for complaining about being accused of being hungover at work after New Year's Day, although he was feeling sick not hungover, and being deprived of wages thereby.

The Court ordered the matter to

arbitration. Plaintiff Jahad Muhammad moves to confirm the arbitration award.

TENTATIVE RULING

The

hearing on Plaintiff's petition to confirm arbitration award is CONTINUED to October 16, 2026 at 8:30 a.m. Plaintiff is to serve Defendant with the notice of continuance by mail.

ANALYSIS

Petition To Confirm Arbitration Award

Discussion

Plaintiff seeks confirmation of the arbitration award resulting from contractual arbitration.

The petition to confirm must be

served and filed no later than four years after the date of service of a signed copy of the award on the petitioner (Code Civ. Proc., § 1288) but may not be served and filed until at least 10 days after service of the signed copy of the

award upon the petitioner. (Code Civ. Proc., § 1288.4.)

The Award was served on all parties on July 7, 2026. (Petition, Exh. D.) The Petition was filed on July 23, 2026 and served on July 22, 2026. The petition is timely.

Although a petition to confirm arbitration award may be filed after 10 days of the service of the award (Civ. Proc. Code, § 1288.4), the hearing must be at least 100 days after the service of the award (Civ. Proc. Code, § 1288.2), which is the period of time in which the respondent may either file a file a petition to vacate the award, even if that time is beyond the 10 days in which the respondent may file a response to the petition. (Civ. Proc. Code, §§ 1285.2, 1290.6.) As articulated by the California Supreme Court, it appears that a response to a petition to confirm an arbitration award, which response seeks to vacate or reduce the award, may be served within 100 days of the service of the award. (Law Fin. Grp., LLC v. Key (2023) 14 Cal.5th 932, 946-47 [bold emphasis and underlining added].)

Here, following the July 7, 2026 service of the Award, the 100-day period would expire on October 15, 2026. As such, the hearing date is premature. The petition was originally set for a November 6, 2026 hearing and was served upon Defendant's counsel of record by electronic service on July 23, 2026. However, Defendant's counsel was relieved, effective August 5, 2026. Subsequently, Plaintiff filed an Amended Notice regarding the Petition To Confirm which re-set the hearing date for September 17, 2026, which is inside the 100 day period.

As such the hearing on the petition to confirm arbitration award is CONTINUED to October 16, 2026 at 8:30 a.m. Plaintiff is to serve Defendant, which is unrepresented by counsel in this matter, with the notice of continuance by mail. (Code Civ. Proc. § 1010.6(f)(2); CRC 2.251(c)(3)(B).)